

Smt. Rani Rajpoot v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 July 2015 · Writ-C No. 36586 of 2015 · **Writ disposed; dues in four monthly instalments; recovery stayed.**

HEADNOTE

Electricity dues — Clause 6.14, U.P. Electricity Supply Code, 2005 — Consumer unable to pay the bill by reason of personal difficulty, but willing to pay in instalments — Licensee having no objection under Clause 6.14 — High Court, as a special case, stays recovery, attachment and auction provided the claimed amount is deposited in four monthly instalments (first of Rs 60,000 within one month) — Amounts already paid to be adjusted; collection charges not recoverable on compliance; order auto-vacates on default — Quantum of the account statement left to any other remedy in law.

FACTUAL SUMMARY

The petitioner, Smt. Rani Rajpoot, had outstanding electricity dues she could not deposit because of personal difficulty. She filed a writ petition seeking facility to pay the bill in easy instalments so that recovery, attachment and auction would not proceed. Counsel for respondent nos. 2 and 3 stated they had no objection in view of Clause 6.14 of the U.P. Electricity Supply Code, 2005. The Court treated the matter as a special case and prescribed a four-instalment deposit of the claimed amount, the first being Rs 60,000.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for outstanding electricity dues

HOLDING

On the licensee's concession that Clause 6.14 of the U.P. Electricity Supply Code, 2005 permits instalments, the Court, as a special case, stayed recovery, attachment and auction of electricity dues provided the consumer deposited the claimed amount in four monthly instalments (first of Rs 60,000 within one month; balance in three equal monthly instalments), with amounts already paid adjusted, collection charges waived on compliance, automatic vacation of the order on default, and the order inoperative if an earlier writ on the same bill had proceeded or auction had already taken place. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILLED OR CLAIMED AMOUNT IN THE ACCOUNT STATEMENT

Petitioner left to any remedy available in law, without being prejudiced by this order. ¶ 1